

Tentative Rulings for June 25, 2026
Department 502

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

25CECG00792 *Lynn Goode v. Volkswagen Group of America, Inc.* is continued to Tuesday, August 4, 2026, at 3:30 p.m. in Department 502.

25CECG01310 *WT Capital Lender Services v. Mario Pinzon* is continued to Tuesday, August 4, 2026, at 3:30 p.m. in Department 502.

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Tentative Rulings for Department 502

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Tentative Ruling

Re: ***Magallen v. Chandler, et al.***
Superior Court Case No. 21CECG03582

Hearing Date: June 25, 2026 (Dept. 502)

Motion: by Defendants for Summary Judgment, or Alternatively
Summary Adjudication

**If oral argument is timely requested, it will be entertained on
Wednesday, July 8, 2026, at 3:30 p.m. in Department 502.**

Tentative Ruling:

To grant defendants Ron Chandler, Katie Gorman, Jim Sutton, Bonnie Rookus, Debbie Porter, John Douglas, David Byrd, Virginia Johnson, and Regency Property Management's motion for summary judgment as to the entire complaint. (Code Civ. Proc. § 437c.) Defendant shall submit a judgment consistent with the terms of this ruling within 10 days of service of the order.

Explanation:

Summary judgment is properly granted when no triable issue exists as to any material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) In moving for summary judgment, a "defendant ... has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. § 437c, subd. (p)(2).) If the defendant does not meet that burden, the motion must be denied, even if the plaintiff has not opposed it adequately or at all. (*Villa v. McFerren* (1995) 35 Cal.App.4th 733, 742–743.) Once the moving defendant has met its initial burden, however, the plaintiff must present facts, supported by admissible evidence, raising a triable issue of material fact. (Code Civ. Proc., § 437c, subds. (b)(2), (b)(3), (p)(2); *Merrill v. Navegar, Inc.* (2001) 26 Cal.4th 465, 476–477 (*Merrill*); see *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 761.)

"It is well established that the pleadings determine the scope of relevant issues on a summary judgment motion." (*Nieto v. Blue Shield of California Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74; see also *State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1132 ["On a motion for summary judgment or summary adjudication, the pleadings delimit the scope of the issues . . ."].)

On December 3, 2021, Plaintiffs Sonya Pierce, Otis Pierce, and Coco Magallen filed their complaint alleging causes of action for (1) declaratory relief, (2) temporary and permanent injunctive relief, (3) breach of duty, and (4) dissolution of the Wonder Valley Property Owners Association ("POA"). All causes of action are alleged against POA board members Ron Chandler, Katie Gorman, Jim Sutton, Bonnie Rookus, Debbie Porter,

John Douglas, David Byrd, Virginia Johnson and John Limpus¹. On October 19, 2022 plaintiffs filed an amendment to the complaint naming Doe 1 as Regency Property Management. There are no fact allegations specific to Regency Property Management. As such, the allegations as to the actions of defendants generally are also pled as those of the defendant management company.

In the time since the complaint was filed the defendants are no longer board members for the POA. (UMF Nos. 6-13, 15.) Additionally, following the election of new POA board members, the POA contract with defendant Regency Property Management was terminated. (UMF No. 17.)

All defendants now move for summary judgment of the complaint or, in the alternative, summary adjudication of each cause of action.

Plaintiff's first cause of action for declaratory relief seeks a declaration of the parties rights with respect to defendants' authority to act as the board of directors of the Wonder Valley POA (Complaint, ¶¶ 29 (a)-(b), (d)-(g)) and seeks to have sums paid to the management company from POA funds reimbursed to the POA by defendants (Complaint, ¶ 29(c). Defendants assert there is no actual controversy between the parties to support a cause of action for declaratory relief now that they are no longer active board members. The court agrees.

"To qualify for declaratory relief, [plaintiff] would have to demonstrate its action presented two essential elements: '(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [a party's] rights or obligations.'" (*Wilson & Wilson v. City Council o Redwood City* (2011) 191 Cal.App.4th 1559, 1582.) An actual controversy exists when a judgment can be definitive and conclusive and not merely advisory. (*In re Claudia E.* (2008) 163 Cal.App.4th 627, 638.)

Any controversy with respect to whether defendants have authority to act on behalf of the POA is moot now that the defendants are no longer members of the board.

Similarly, the second cause of action seeks to enjoin further actions by defendants as the board of directors for the POA pursuant to the CC&Rs and/or Bylaws. (Complaint, ¶¶ 35-37.) As defendants are no longer members of the board and not in a position to take action on behalf of the POA, to the extent plaintiffs seek to enjoin such action the cause of action is moot.

Insofar as either cause of action seeks to compel repayment of funds to the POA, defendants assert any such cause of action must be prosecuted as a derivative action on behalf of the POA and not by plaintiffs individually. (*Gantman v. United Pacific Ins. Co.* (1991) 232 Cal.App.3d 1560, 1567.) Defendants submit as undisputed that the POA is a nonprofit mutual benefit corporation and the action was not brought as a derivative cause of action. (UMF Nos. 1, 20.)

Accordingly, defendants have met their burden in demonstrating they are entitled to summary judgment of the first and second causes of action.

The third cause of action alleges defendants breach their duty to POA members and the POA itself by retaining the services of a management company and an attorney, failing to comply with reporting requirements, failing to provide access to records and

¹ Defendant John Limpus was dismissed from the action on December 16, 2021.

financial information, failed to comply with the bylaws with regard to assessments and the imposition of liens, and generally disregarded the desires of the members and governing documents. (Complaint, ¶ 40.) Defendants move for summary judgment on the basis that plaintiffs cannot establish any damages from the alleged breaches and any alleged actions taken in defendants' capacity as members of the board are protected by the business judgment rule.

As pled, plaintiffs allege damages from the breaches of duty "in an amount according to proof." (Complaint, ¶ 42.) In the course of discovery, defendants requested facts to support plaintiffs' prayer for damages and plaintiffs responded that they were damaged in having to spend money and time to bring the lawsuit and having paid assessment amounts over the amount stated in the governing documents. (UMF No. 23.) Generally, "attorney fees are not recoverable as costs unless a statute or contract expressly authorizes them." (*California Wholesale Material Supply, Inc. v. Norm Wilson & Sons, Inc.* (2002) 96 Cal.App.4th 598, 604.) The complaint does not include of any contractual or statutory basis for the recovery of attorney fees.

"A moving defendant may rely on factually devoid discovery responses to shift the burden of proof pursuant to section 437c, subdivision (o)(2). Once the burden shifts as a result of the factually devoid discovery responses, the plaintiff must set forth the specific facts which prove the existence of a triable issue of material fact." (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590.) In discovery, plaintiffs assert the basis for attorney fees is that they were incurred for the common good of all members of the POA and do not provide any statutory or contractual basis to support this theory. (UMF No. 24.) Additionally, plaintiffs have responded that they are not seeking damages when asked to produce documents to support damages asserted in the action. (UMF No. 21.) The evidence that has been produced in response to membership assessments paid by plaintiffs include a balance sheet of overdue assessments or no documents at all. (UMF Nos. 26, 27.)

It appears defendants have requested evidence as to what damages are sought by plaintiffs, why they are entitled to such damages, and the extent of damages and have not been provided evidence to support damages caused by the alleged breach of duty that can be recovered. Defendants have met their burden of proof as to plaintiffs' inability to establish the element of damages based on their factually devoid discovery responses.

Plaintiff's fourth cause of action calls for the dissolution of the POA. Defendants are no longer members of the board or have any authority to act to dissolve the POA. (UMF Nos. 6-13, 15, 17.) Defendants have demonstrated that the cause of action is moot with respect to defendants and met their burden that they are entitled to summary judgment.

Plaintiffs have failed to submit a separate statement opposing the motion at bench demonstrating there is a dispute of material fact to preclude summary judgment. (Code Civ. Proc. § 437c, subd. (b)(3).)

As the court has found defendants have met their burden with respect to each cause of action alleged against them, and plaintiffs have not demonstrated a dispute of material fact, the court intends to grant the motion for summary judgment as to the entire

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: img on 6-24-26
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: **Chavez v. Smaldino**
Superior Court Case No. 24CECG04891

Hearing Date: June 25, 2026 (Dept. 502)

Motion: By Plaintiff for Leave to File a First Amended Complaint

**If oral argument is timely requested, it will be entertained on
Wednesday, July 8, 2026, at 3:30 p.m. in Department 502.**

Tentative Ruling:

To grant plaintiff Jennah Chavez's motion for leave to file a first amended complaint. (Code Civ. Proc., § 473.) Plaintiff shall file their first amended complaint within 10 days of the date of service of this order.

Explanation:

“ ‘Code of Civil Procedure section 473, which gives the courts power to permit amendments in furtherance of justice, has received a very liberal interpretation by the courts of this state.... In spite of this policy of liberality, a court may deny a good amendment in proper form where there is unwarranted delay in presenting it.... On the other hand, where there is no prejudice to the adverse party, it may be an abuse of discretion to deny leave to amend.’ [Citation.] ‘In the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial.... Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.’ [Citation.]” (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159.)

“While a motion to permit an amendment to a pleading to be filed is one addressed to the discretion of the court, the exercise of this discretion must be sound and reasonable and not arbitrary or capricious. And it is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’ If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Superior Court of Cal. In and For Los Angeles County* (1959) 172 Cal.App.2d 527, 530, internal citations omitted.)

Plaintiff Jennah Chavez moves the court for an order granting her leave to file a First Amended Complaint, which will add her spouse, Murat Dugan, as a plaintiff, and add causes of action for negligent infliction of emotional distress and loss of consortium. Defendant Roni Marie Smaldino has not opposed the motion. Accordingly, the court grants plaintiff Jennah Chavez's motion for leave to file the First Amended Complaint.

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Tentative Ruling

Re: **Pickens v. Macias**
Superior Court Case No. 25CECG03419

Hearing Date: June 25, 2026 (Dept. 502)

Motion: By Defendant Dr. Edgar S. Macias, M.D. for an Order Compelling Responses to Form Interrogatories, Set One, Special Interrogatories, Set One, Request for Production of Documents, Set One, and Request for Nature and Amount of Damages; and Request for Sanctions

**If oral argument is timely requested, it will be entertained on
Wednesday, July 8, 2026, at 3:30 p.m. in Department 502.**

Tentative Ruling:

To grant defendant Dr. Edgar S. Macias's motion to compel plaintiffs Lawrence Leroy Pickens and Mary Annette Pickens to provide verified responses to Form Interrogatories, Set One, Special Interrogatories, Set One, Request for Production of Documents, Set One, and Request for Nature and Amount of Damages. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) Plaintiffs Lawrence Leroy Pickens and Mary Annette Pickens are ordered to serve complete verified responses to the discovery set forth above, without objections, within 15 days of the clerk's service of the minute order.

To impose monetary sanctions in favor of defendant Dr. Edgar S. Macias and against plaintiffs Lawrence Leroy Pickens and Mary Annette Pickens. (Code Civ. Proc., §§ 2023.010, subd. (d), 2030.290, subd. (c), 2031.300, subd. (c).) Plaintiffs Lawrence Leroy Pickens and Mary Annette Pickens are ordered to pay \$900.00 in total sanctions to Salinas Law Group within 30 days of the clerk's service of the minute order.

Explanation:

Where a party fails to serve a timely response to interrogatories or demand for inspection, copying, testing, or sampling, the propounding party may move for an order compelling response. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) A party that fails to serve a timely response to interrogatories or an inspection demand waives any objection to the request. (*Id.*, §§ 2030.290, subd. (a), 2031.300, subd. (a).)

In the case at bench, on November 19, 2025, defendant Dr. Edgar S. Macias, M.D. ("Defendant") served Form Interrogatories, Set One, Special Interrogatories, Set One, Request for Production of Documents, Set One, and Request for Nature and Amount of Damages on plaintiffs Lawrence Leroy Pickens and Mary Annette Pickens ("Plaintiffs") by electronic service. Plaintiffs were required to respond by December 22, 2025. Plaintiffs failed to timely serve verified responses. Therefore, Defendant is entitled to an order

compelling Plaintiffs to respond to the discovery at issue. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) All objections are waived. (*Id.*, §§ 2030.290, subd. (a), 2031.300, subd. (a).)

Sanctions

If the party asks for monetary sanctions against the party who failed to respond to interrogatories, the court shall impose a monetary sanction against the losing party on the motion to compel unless it finds that the one subject to the sanction acted with substantial justification or circumstances make the sanctions unjust. (Code Civ. Proc., § 2030.290, subd. (c).) Sanctions are similarly authorized against a party who failed to respond to a demand for inspection or production. (*Id.*, § 2031.300, subd. (c).) Sanctions must be for reasonable expenses in enforcing discovery, including attorney's fees. (*Id.*, § 2023.030, subd. (a).)

Counsel for Defendant submits that their hourly rate is \$220 per hour. The court approves the hourly rates as reasonable. Plaintiff seeks imposition of 3 hours for legal research and preparation of the motions considered, and an additional fee for an appearance at a possible hearing. The court imposes sanctions in the reduced amount of \$900, inclusive of the \$240 in filing fees.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By:  **on** 6-24-26 .

(Judge's initials) (Date)

(49)

Tentative Ruling

Re: **Edwards v. GS Freight, Inc., et al.**
Superior Court Case No. 24CECG05021

Hearing Date: June 25, 2026 (Dept. 502)

Motion:

- 1) By Truezhay Edwards to Compel Responses to Special Interrogatories, Set One, Form Interrogatories, Set One, and Request for Production of Documents and Things, Set One, from Defendant Navdeep Singh Goraya and Request for Sanctions
- 2) By Truezhay Edwards to Request for Admissions Deemed Admitted and Request for Sanctions
- 3) By Mary Carter to Compel Responses to Special Interrogatories, Set One, Form Interrogatories, Set One, and Request for Production of Documents and Things, Set One, from Defendant Navdeep Singh Goraya and Request for Sanctions
- 4) By Mary Carter to Request for Admissions Deemed Admitted and Request for Sanctions

**If oral argument is timely requested, it will be entertained on
Wednesday, July 8, 2026, at 3:30 p.m. in Department 502.**

Tentative Ruling:

To deny and find moot plaintiffs Truezhay Edwards and Mary Carter's motions to compel defendant Navdeep Singh Goraya's responses to From Interrogatories, Set One, and Request for Production of Documents and Things, Set One, and the requests for admissions to be deemed admitted, as it appears responses have been served.

To grant plaintiffs Truezhay Edwards and Mary Carter's motions to compel defendant Navdeep Singh Goraya's responses to Special Interrogatories, Set One. Defendant Navdeep Singh Goraya is ordered to serve verified responses, without objections, within 15 days of the clerk's service of the minute order.

To impose monetary sanctions in favor of plaintiffs Truezhay Edwards and Mary Carter and against defendant Navdeep Singh Goraya. (Code Civ. Proc. §§ 2023.010, subd. (d), 2030.290, subd. (c), 2031.300, subd. (c).) Defendant Navdeep Singh Goraya is ordered to pay \$750 in sanctions to B&D Law Group, APLC, within 30 days of the clerk's service of the minute order.

Explanation:

Plaintiffs Truezhay Edwards and Mary Carter ("Plaintiffs") move to compel responses from defendant Navdeep Singh Goraya ("Defendant") to Special Interrogatories, Set One ("SROG"), Form Interrogatories, Set One ("FROG"), and Request

for Production of Documents and Things, Set One ("RFPD"). Plaintiffs additionally move to request for admissions to be deemed admitted ("Admissions").

On July 10, 2025, Plaintiffs served FROG, SROG, RFPD, and Admissions on Defendant. (Renge Decl. ISO FROG, ¶ 2; Renge Decl. ISO SROG, ¶ 2; Renge Decl. ISO RFPD, ¶ 2; Renge Decl. ISO Admissions, ¶ 2.) On March 11, 2026, Plaintiffs filed the present motions. On June 9, 2026, Defendant served responses to FROG, RFPD, and Admissions. (Rutherford Decl. ISO Opposition to FROG, ¶ 7; Rutherford Decl. ISO Opposition to RFPD, ¶ 7; Rutherford Decl. ISO Opposition to Admissions, ¶ 7.)

Form Interrogatories, Set One, Request for Production of Documents and Things, Set One, and Request for Admissions to be Deemed Admitted

Responses by Defendant to FROG, RFPD, and Admissions have been served on Plaintiffs. Accordingly, the motions to compel responses to FROG and RFPD, and to deem admissions admitted are denied as moot.

Special Interrogatories, Set One

Defendant argues Plaintiffs never served Defendant with SROG. Defendant points to the email serving discovery on Defendant from Plaintiffs. The email does not include any attachments entitled SROG or mention special interrogatories. (Rutherford Decl. ISO Opposition to SROG, ¶ 4 and Exh. A.) However, Plaintiffs served SROG by attaching the SROG questions to the end of the form interrogatories document. (Renge Decl. ISO SROG, Exh. A.) Defendant was served FROG which had SROG attached at the end of the same document. Therefore, Plaintiffs have served Defendant and were entitled to responses. Accordingly, Plaintiffs' motions to compel responses to SROG are granted.

Sanctions

Plaintiffs are seeking sanctions in the amount of \$810 per motion filed based on three hours of work by an attorney at \$250 an hour and a \$60 filing fee. Plaintiffs request thus totals to \$6,480 in sanctions. Defendant argues the amount sought is excessive as the motions are repetitive with very similar information and facts. Further, Defendant argues Plaintiff is attempting to multiply one meet and confer time by the number of motions filed. Plaintiffs are also requesting to recover on a filing fee Plaintiffs did not pay. Plaintiffs have fee waivers on file and do not pay filing fees. Accordingly, Plaintiffs' request for sanctions is granted but reduced. Defendant is ordered to pay \$750 in reduced sanctions to B&D Law Group, APLC, within 30 days of the service of the minute order.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img **on** 6-24-26.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***In re: Graceson A. Vongsaly***
Superior Court Case No. 26CECG00722

Hearing Date: June 25, 2026 (Dept. 502)

Motion: Petition to Compromise Minor's Claim

**If oral argument is timely requested, it will be entertained on
Wednesday, July 8, 2026, at 3:30 p.m. in Department 502.**

Tentative Ruling:

To deny, without prejudice, the petition to approve the compromised claim of minor Graceson A. Vongsaly. Petitioner must file an amended petition, with appropriate supporting papers and proposed orders, and obtain a new hearing date for consideration of the amended petition. (Super. Ct. Fresno County, Local Rules, rule 2.8.4.)

Explanation:

The petition submitted by petitioner seeks approval of the settlement of the personal injury claim of minor Graceson A. Vongsaly ("minor") against Ivanny Ines Garcia Lopez, by and through their insurer, ESIS Insurance. There are issues with the petition that prevent approval.

The petition must be on form MC-350, verified by the petitioner and include all information having bearing on the reasonableness of the compromise. (Cal. Rules of Court, rule 7.950; Super. Ct. Fresno County, Local Rules, rule 2.8.4.)

The petition at Item 7 indicates the minor was evaluated at an emergency room, but the medical provider, the date of the evaluation, and the diagnosis or treatment is not indicated. There is not an attachment to the petition, such as Attachment 8, providing a medical report to reflect a diagnosis or prognosis provided. Supporting medical records must be attached as Attachment 8.

The total medical expenses, reductions of medical expenses, and the resulting balance of medical expenses appear to be inconsistent between the petition, the attached declaration, and attached documentation. As such, the petition may need to be corrected at Items 12a and 12b. Evidence of medical expenses and all negotiated reductions must be provided to support the resulting payment from the settlement. As such, evidence of the medical costs incurred by the minor and evidence of the agreed reductions are requested.

Moreover, the terms of the settlement acknowledge that minor is a Medicaid recipient, which operates in California as Medi-Cal. No information was provided by way of a lien notice or letter from the California Department of Health Care Services that recovery of any benefits paid by it are waived. This alone requires the petition be denied.

The name of the financial institution for which the balance of minor's settlement is to be deposited must be provided in Attachment 18b(2).

The proposed order (MC-351) must be completed. Items 5, 6b, 8a, 8b, 9, 9c, and 10 are incomplete, therefore, the court requests a completed proposed order. Additionally, the proposed Order to Deposit Funds into Blocked Account (MC-355) filed with the court was incomplete at Item 4, thus, a corrected order is requested.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img **on** 6-24-26.
(Judge's initials) (Date)